

26STCV14932 26STCV14932

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Case Number: 26STCV14932 Hearing Date: August 12, 2026 Dept: 509

Jane Doe v. Polytechnic School, et al.

MOTION TO STRIKE

MOVING PARTY: Defendants Polytechnic School and Meredith Robbins

RESPONDING PARTYS: Plaintiff Jane Doe

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

This is an employment action. Plaintiff Jane Doe (Plaintiff) filed this complaint against defendants Polytechnic School and Meredith Robbins (collectively, Defendants) arising from an employment relationship. Plaintiffs assert causes of action for: (1) discrimination in violation of the FEHA; (2) hostile work environment harassment in violation of the FEHA; (3) retaliation in violation of the FEHA; (4) failure to prevent discrimination, harassment, or retaliation in violation of FEHA; (5) negligent hiring, supervision, and retention; (6) intentional infliction of emotional distress; (7) wrongful constructive termination of employment in violation of public policy; (8) whistleblower retaliation (Labor Code §1102.5 et seq.); and (9) violation of Labor Code § 2802.

Defendants now move to strike Plaintiff's use of the Jane Doe designation in the complaint. Plaintiff opposed.

TENTATIVE RULING:

Defendants' Motion to Strike is DENIED WITHOUT PREJUDICE.

An OSC Re: Plaintiff's Use of Pseudonym is scheduled for September 15, 2026, which is the date of the initial Case Management Conference. Any declarations and/or briefing on this issue are to be filed and served by any party on or before September 8, 2026, at 4:00 pm.

Defendant is ordered to give notice, unless waived.

DISCUSSION:

Motion to Strike

I. Meet and Confer

Before filing a motion to strike, the moving party "shall meet and confer...with the party who filed the pleading that is subject to the motion to strike for the purpose of determining if an agreement can be reached that resolves the objections to be raised in the motion to strike..." (Code Civ. Pro. § 435.5, subd. (a).) The moving party "shall file and serve with the motion to strike a declaration" attesting to the meet and confer. (Id. § 435.5(a)(3).)

The Declaration of attorney Matthew W. Burris reflects the meet and confer requirement was satisfied.

II. Legal Standard

A motion to strike lies either (1) to strike any irrelevant, false or improper matter inserted in any pleading; or (2) to strike any pleading or part thereof not drawn or filed in conformity with the laws of this state, a court rule or order of court. (Code Civ. Pro. § 436.)

III. Analysis

Defendants move to strike Plaintiff's use of the Jane Doe pseudonym from the complaint.

Before a party to a civil action can be permitted to use a pseudonym, the trial court must conduct a hearing and apply the overriding interest test: A party's request for anonymity should be granted only if the court finds that an overriding interest will likely be prejudiced without use of a pseudonym, and that it is not feasible to protect the interest with less impact on the constitutional right of access. In deciding the issue the court must bear in mind the critical importance of the public's right to access judicial proceedings. Outside of cases where anonymity is expressly permitted by statute, litigating by pseudonym should occur 'only in the rarest of circumstances.'

(Department of Fair Employment and Housing v. Superior Court of Santa Clara County (2022) 82 Cal.App.5th 105, 111–112, emphasis added.)

Because resolution requires an evidentiary hearing, a motion to strike is not the appropriate avenue for relief. Further, Plaintiff has provided no evidence in support of her opposition but rather relies upon generalized arguments. Considering this observation, Plaintiff should be given the opportunity to present specific evidence supporting her need for a pseudonym.

Accordingly, Defendant's Motion to Strike is DENIED WITHOUT PREJUDICE.

Instead, on its own motion, the Court sets an OSC Re: Plaintiff's Use of Pseudonym for September 15, 2026. An evidentiary hearing will be conducted to determine whether Plaintiff has sufficient evidence supporting her need for a pseudonym.

IT IS SO ORDERED.

Dated: August 12, 2026 _____

Randolph M. Hammock

Judge of the Superior Court

Any party may submit on the tentative ruling by contacting the courtroom via email at by no later than 4:00 p.m. the day before the hearing. All interested parties must be copied on the email. It should be noted that if you submit on a tentative ruling the court will still conduct a hearing if any party appears. By submitting on the tentative you have, in essence, waived your right to be present at the hearing, and you should be aware that the court may not adopt the tentative, and may issue an order which modifies the tentative ruling in whole or in part.